

BEFORE THE STATE BOARD OF LICENSED PROFESSIONAL COUNSELOR
EXAMINERS

STATE OF COLORADO

Case Nos. 2015-643, 2015-698, 2015-942, 2015-3645, 2015-4691, and 2016-1240

ORDER OF SUMMARY SUSPENSION

TO: STANFORD SUTHERLAND

The State Board of Licensed Professional Counselor Examiners ("the Board"), having reviewed all available information as to the matters referenced below, HEREBY FINDS AS FOLLOWS:

1. Stanford Sutherland ("Respondent") has been licensed as a Licensed Professional Counselor ("LPC") in the State of Colorado since January 17, 2008. Respondent's license number is LPC 4879.
2. The Board has jurisdiction over Respondent and the subject matter herein.
3. On November 21, 2016, the Board and Respondent entered into a Stipulation and Final Agency Order ("Stipulation"), attached hereto as **Exhibit 1**. Therein, Respondent admitted to violations of §§ 12-43-214 and 12-43-222(1)(b), (g)(I), (h), (n), (p), (t)(III), and (u), C.R.S. **Exhibit 1, ¶ 8**. As a result of his admitted violations, Respondent accepted discipline by the Board in the form of admonition, a practice restriction, a period of probation of five (5) years during which time Respondent was required to have a practice monitor ("PM") in place, and to completion of 100 hours of continuing education ("CE") over the course of five (5) years. **Exhibit 1, ¶¶ 9 – 28**.
4. The Stipulation constituted a Board Order for purposes of § 12-43-222(1)(b), C.R.S., and had the same force and effect as an order entered after a formal disciplinary hearing pursuant to § 12-43-224, C.R.S. **Exhibit 1, ¶ 36**.
5. Respondent's proposed PM was approved by the Board on or about February 10, 2017. Upon approval of Respondent's PM, Respondent and his PM were required to enter into a written contract within 30 days. **Exhibit 1, ¶ 18**. The PM was then required to provide a copy of the written contract to the Board as part of his/her first report to the Board. **Exhibit 1, ¶ 19**.
6. Respondent's PM was to submit her first report to the Board, along with a copy of the written contract, on April 1, 2017. **Exhibit 1, ¶ 21**. Subsequent reports were to be provided to the Board on the first day of each month for the first 12 reports. **Exhibit 1, ¶ 21**.

7. In early April 2017, Respondent's PM contacted the Board and informed Board staff that she and Respondent had not entered into a written contract as required by the Stipulation.

8. The Board received Respondent's PM's report on April 27, 2017 – 26 days after the same was due to the Board. Therein, Respondent's PM informed the Board that Respondent had not paid PM for any services to date and represented to PM that he was uncertain as to when he might be able to pay PM for services. As a result, Respondent's PM informed the Board that practice monitoring had been "placed on hold."

9. A copy of the required written contract between Respondent and his PM was not provided to the Board with the PM's first report as required by the Stipulation.

10. The second report of Respondent's PM was due to the Board on May 1, 2017. A report was not provided to the Board on that date, or on any date thereafter.

11. Upon full investigation of the documents and information presented in regard to Case Nos. 2015-698, 2015-942, 2015-3645, 2015-4691, and 2016-1240, the Board finds that Respondent has failed to enter into a written contract with his PM and is currently practicing psychotherapy without having a PM monitor his practice in direct violation of the Stipulation and § 12-43-222(1)(b), C.R.S.

12. Upon full investigation of the documents and information presented, the Board finds objective and reasonable grounds to believe and finds that Respondent is not safe to practice as a Licensed Professional Counselor with reasonable skill and safety to patients and the public health, safety, and welfare imperatively requires emergency action. As a result, Respondent's license to practice psychotherapy in the State of Colorado must be summarily suspended.

13. Respondent cannot engage in the practice of psychotherapy in the State of Colorado or hold himself out as able to practice psychotherapy in the State of Colorado while his license is suspended.

14. Any violation of this Order constitutes a violation of a lawful Board Order and may be grounds for further proceedings pursuant to § 12-43-224, C.R.S. The pendency of any disciplinary action shall not affect the obligation of Respondent to comply with this Order.

15. This Order does not resolve any other cases, complaints, or matters, known or unknown to the Board or Respondent, as of the effective date of this Order.

16. This Order shall be a public record in the custody of the Board.

THEREFORE, pursuant to the above, IT IS HEREBY ORDERED that under §§ 24-4-104(4) and 24-4-105(12), C.R.S., the license of Stanford Sutherland to practice psychotherapy in the State of Colorado is summarily suspended.

DATED and SIGNED this 11th day of May, 2017.

On behalf of the Colorado State Board of Licensed
Professional Counselor Examiners,



Darcie Magnuson
Program Director